

Babu Khan v. State of U.P.

Allahabad High Court · Division Bench · 21 August 2025 · 2025:AHC:143814-DB · Writ-C No. 26141 of 2025 · **Writ disposed; representation to be considered under clause 6.5 within three weeks.**

HEADNOTE

After disconnection for non-payment of an alleged inflated bill, a consumer who had already made a representation was relegated to clause 6.5 of the U.P. Electricity Supply Code, 2005. The High Court directed that the representation be dealt with under that provision and the result communicated within three weeks of the petitioner sending a certified copy of the order and the representation to the licensee. Restoration was not ordered on the writ.

FACTUAL SUMMARY

Petitioner Babu Khan alleged that an inflated electricity bill was issued and, on non-payment, supply was disconnected. He made a representation dated 15 July 2025 seeking consideration and restoration, then filed a writ petition for a direction to the supply company to consider that representation expeditiously and restore the connection. Counsel for the distribution licensee submitted that a dispute on bills must be raised under clause 6.5 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-under-6.5

HOLDING

A representation already made against an alleged inflated bill, after disconnection for non-payment, is to be dealt with under clause 6.5 of the U.P. Electricity Supply Code, 2005. The consumer is to communicate a certified copy of the order and the representation to the licensee; the result of consideration is to be made known within three weeks of that communication. The writ is disposed of without directing restoration. ¶ 3-4

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 After disconnection for non-payment of an alleged inflated bill, a consumer who had already made a representation was relegated to clause 6.5 of the U.P. Electricity Supply Code, 2005.. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILL WAS INFLATED AND WHETHER SUPPLY SHOULD BE RESTORED

Left to consideration of the existing representation under clause 6.5; no merits grant or refusal. ¶ 4-5